

JUDICIAL ACTIVISM

■ By Harish Salve

The Indian Supreme Court has always been a powerhouse. From the Kania Court in 1950 to the Sabharwal Court in 2006 (declaring that fundamental rights weren't a numbers game, and effectively sterilising the Ninth Schedule) it has been a long and, at times, turbulent journey—with a few revolutions and a mutiny along the way.

In the first two decades, the court displayed a trend of caution in all matters, except property rights. The right to free speech was widely construed and attempts of states to impose limitations on grounds of "public order" thwarted, but the court decisively ruled against reading the US doctrine of "due process" by taking note of the fact that the founding fathers had used the phrase "procedure established by law" instead of "due process of law". The consequence was that any imposition on citizens' liberties would be constitutionally tolerable as long as it was backed by a law—the

"due process" philosophy would have empowered the court to examine whether the law was just, fair and reasonable. Property rights provided the arena for engagement of a reformist Jawaharlal Nehru and a conservative court that found it hard to accept that properties could be taken without compensation.

When the Patna High Court invalidated a zamindari abolition law, Nehru persuaded Parliament to pass the First Amendment that inserted Article 31A (it puts land reform laws beyond the pale of scrutiny by the court), the infamous 31B and the Ninth Schedule. The court invalidated various laws including



Fair GAME

The Supreme Court of India has come to the rescue of the beleaguered citizen by steadily cleaning up the physical and the political environment